

Amendment No. 1 to HB1446

Crawford
Signature of Sponsor

AMEND Senate Bill No. 1663

House Bill No. 1446*

by deleting from subdivisions (a)(18) and (19) in Section 2 the language "should" and substituting "shall".

AND FURTHER AMEND by deleting from subsection (c) in Section 2 the language "Except as provided under subsection (d), a state agency shall not" and substituting "Except when in reference to a communication issued by a federal agency, a state agency shall not".

AND FURTHER AMEND by deleting subsection (d) in Section 2 and substituting:

(d) This section must not be construed to:

(1) Infringe on the rights of freedom of speech protected by the First Amendment to the United States Constitution;

(2) Apply to or restrict lecture content, classroom remarks, scholarly articles, research publications, or other expressive academic work of faculty at public institutions of higher education; or

(3) Compel or require an individual to use the terminology specified in this section as an endorsement of a particular viewpoint or ideology.

(e) Notwithstanding subsection (d), this act applies to written records or materials prepared by state employees acting in their official capacities for administrative or institutional purposes, including course descriptions, catalogs, institutional publications, and other official or administrative materials.